

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

JOINT STATUS REPORT

Pursuant to the September 23, 2024 Order Granting Complainant’s Motion Requesting the Presiding Officer Issue a Subpoena After the Discovery Cutoff (“Order”), Complainant, Samsung Electronics America, Inc. (“SEA”) and Respondent, SM Line Corporation (“SM Line”) (each a “Party” and collectively the “Parties”), submit this Joint Status Report in lieu of the October 14, 2024 status conference.

SEA’s position is that it has spent considerable time and effort to effectuate the subpoena on Mark Lee for a deposition SEA noticed for Thursday, October 10, 2024. Those efforts have been unsuccessful to date.¹ The complete efforts undertaken are addressed in a declaration of Allison N. Skopec, being filed with the FMC concomitantly with a Motion Requesting the

¹ Because SEA has been unable to secure the deposition of Mr. Lee, the Parties are unable to provide a “schedule for any filings necessary to supplement the record” at this time, but can supplement this Report once Mr. Lee’s deposition is actually taken.

Presiding Officer Issue a Subpoena *Duces Tecum* and *Ad Testificandum* to Third-Party SeaLead Shipping USA, Inc. (“SeaLead”) for the Limited Purpose of Locating Mr. Yoon-Jai “Mark” Lee (“Motion”). SeaLead, is the current employer of Mr. Lee, and will be able to confirm this whereabouts through the use of very limited subpoenas. SM Line takes “no position on SEA’s particularly limited motion to subpoena Sea Lead’s human resources department’s records in order to confirm the whereabouts (ie. residence) of Mr. YJ Lee. However, SM Lines reserves its rights to object or oppose any other motions, claims, or actions that SEA may pursue in the future beyond this limited Motion.”

Dated: October 11, 2024

Respectfully Submitted,

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